CERTIFICATE OF INSURANCE

Ashford Data Center | Grand Rapids, MI

Insured	Ashford Data Center Owner LLC
Location Covered	Ashford Data Center, 7471 Heritage Street, Grand Rapids, MI 60188
Certificate Date	August 15, 2026
Mortgagee	Harbor Mutual Life

Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Keystone Casualty	CPP4910179	12/07/2023	12/06/2024	$50,000,000	$10,000
General Liability	Sentinel Property & Casualty	GL6285320	04/20/2025	04/20/2026	$25,000,000	$100,000
Umbrella / Excess	Great Lakes Mutual	CPP4887763	09/06/2025	09/06/2026	$2,000,000	$10,000
Business Income	Great Lakes Mutual	BOP7797340	05/24/2024	05/24/2025	$5,000,000	$100,000
Flood	Prairie State Indemnity	UMB3125818	01/30/2023	01/30/2024	$2,000,000	$5,000
Windstorm / Hail	Keystone Casualty	UMB5417970	10/22/2024	10/22/2025	$50,000,000	$100,000
Terrorism (TRIA)	Blue Ridge Underwriters	UMB1687050	05/06/2024	05/06/2025	$5,000,000	$10,000
Equipment Breakdown	Prairie State Indemnity	BOP3664351	04/19/2026	04/19/2027	$2,000,000	$50,000
Ordinance & Law	Blue Ridge Underwriters	GL7716371	11/28/2023	11/27/2024	$25,000,000	$25,000
Workers' Compensation	Prairie State Indemnity	BOP2493170	03/15/2026	03/15/2027	$5,000,000	$25,000
Cyber Liability	Keystone Casualty	UMB6250588	05/20/2025	05/20/2026	$25,000,000	$50,000
Crime / Fidelity	Great Lakes Mutual	GL7119358	02/01/2024	01/31/2025	$2,000,000	$25,000
Pollution Legal Liability	Keystone Casualty	GL8393596	05/06/2025	05/06/2026	$50,000,000	$50,000
Employment Practices	Blue Ridge Underwriters	CPP4988274	10/27/2025	10/27/2026	$5,000,000	$50,000

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Allied Heritage Insurance	CPP2253915	02/17/2025	02/17/2026	$25,000,000	$5,000
General Liability	Great Lakes Mutual	BOP8628558	05/09/2025	05/09/2026	$1,000,000	$50,000
Umbrella / Excess	Allied Heritage Insurance	BOP9849577	04/20/2024	04/20/2025	$25,000,000	$5,000
Business Income	Prairie State Indemnity	CPP6927229	12/21/2025	12/21/2026	$25,000,000	$100,000
Flood	Great Lakes Mutual	BOP1426972	10/27/2025	10/27/2026	$2,000,000	$10,000
Windstorm / Hail	Prairie State Indemnity	BOP7896338	05/08/2026	05/08/2027	$2,000,000	$5,000
Terrorism (TRIA)	Blue Ridge Underwriters	GL4029749	09/20/2023	09/19/2024	$5,000,000	$10,000
Equipment Breakdown	Great Lakes Mutual	GL5584073	02/25/2025	02/25/2026	$1,000,000	$25,000
Ordinance & Law	Keystone Casualty	UMB5749749	04/07/2025	04/07/2026	$5,000,000	$10,000
Workers' Compensation	Keystone Casualty	BOP9030786	06/02/2025	06/02/2026	$5,000,000	$10,000
Cyber Liability	Keystone Casualty	UMB8748639	06/30/2025	06/30/2026	$5,000,000	$5,000
Crime / Fidelity	Allied Heritage Insurance	GL5120962	08/14/2023	08/13/2024	$1,000,000	$100,000
Pollution Legal Liability	Sentinel Property & Casualty	GL3346584	08/02/2024	08/02/2025	$2,000,000	$25,000
Employment Practices	Keystone Casualty	BOP4744806	03/20/2023	03/19/2024	$1,000,000	$25,000

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1. Appointment. Owner appoints Manager as the exclusive managing agent of Ashford Data Center, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

3. Management Fee. Manager shall receive a monthly management fee equal to 6.0% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

7. Spending Authority. Manager may incur expenses not exceeding $51,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Blue Ridge Underwriters	BOP2627159	01/29/2026	01/29/2027	$5,000,000	$50,000
General Liability	Allied Heritage Insurance	GL6282136	07/15/2023	07/14/2024	$5,000,000	$10,000
Umbrella / Excess	Great Lakes Mutual	BOP7045596	04/27/2023	04/26/2024	$1,000,000	$50,000
Business Income	Keystone Casualty	GL3532094	09/21/2023	09/20/2024	$1,000,000	$5,000
Flood	Great Lakes Mutual	CPP7875198	07/06/2025	07/06/2026	$1,000,000	$5,000
Windstorm / Hail	Keystone Casualty	UMB4551876	04/19/2024	04/19/2025	$2,000,000	$25,000
Terrorism (TRIA)	Great Lakes Mutual	GL3853505	03/19/2024	03/19/2025	$2,000,000	$5,000
Equipment Breakdown	Blue Ridge Underwriters	UMB7246126	09/02/2024	09/02/2025	$1,000,000	$100,000
Ordinance & Law	Keystone Casualty	CPP9995163	01/02/2025	01/02/2026	$2,000,000	$50,000
Workers' Compensation	Keystone Casualty	GL2293454	08/16/2024	08/16/2025	$50,000,000	$5,000
Cyber Liability	Keystone Casualty	BOP9968969	10/06/2023	10/05/2024	$2,000,000	$5,000
Crime / Fidelity	Sentinel Property & Casualty	BOP3511119	06/30/2025	06/30/2026	$2,000,000	$50,000
Pollution Legal Liability	Keystone Casualty	UMB8967469	09/04/2023	09/03/2024	$2,000,000	$10,000
Employment Practices	Sentinel Property & Casualty	GL5069820	04/15/2025	04/15/2026	$50,000,000	$50,000

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8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Ashford Data Center, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

12. Management Fee. Manager shall receive a monthly management fee equal to 5.9% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Allied Heritage Insurance	GL2632907	11/07/2025	11/07/2026	$5,000,000	$5,000
General Liability	Allied Heritage Insurance	UMB7149223	08/14/2023	08/13/2024	$50,000,000	$25,000
Umbrella / Excess	Blue Ridge Underwriters	BOP4882634	11/25/2025	11/25/2026	$1,000,000	$100,000
Business Income	Sentinel Property & Casualty	GL5875979	11/08/2025	11/08/2026	$5,000,000	$50,000
Flood	Keystone Casualty	CPP5017188	05/21/2023	05/20/2024	$50,000,000	$10,000
Windstorm / Hail	Prairie State Indemnity	BOP3292417	07/05/2024	07/05/2025	$1,000,000	$25,000
Terrorism (TRIA)	Prairie State Indemnity	CPP9609269	03/06/2026	03/06/2027	$1,000,000	$50,000
Equipment Breakdown	Sentinel Property & Casualty	GL4194881	05/04/2025	05/04/2026	$25,000,000	$50,000
Ordinance & Law	Blue Ridge Underwriters	CPP3499293	09/05/2023	09/04/2024	$50,000,000	$50,000
Workers' Compensation	Prairie State Indemnity	CPP4451004	01/19/2024	01/18/2025	$10,000,000	$5,000
Cyber Liability	Blue Ridge Underwriters	UMB2251553	11/05/2025	11/05/2026	$1,000,000	$10,000
Crime / Fidelity	Sentinel Property & Casualty	UMB2774067	10/18/2023	10/17/2024	$10,000,000	$100,000
Pollution Legal Liability	Keystone Casualty	CPP7163844	11/06/2023	11/05/2024	$25,000,000	$10,000
Employment Practices	Keystone Casualty	BOP5308235	02/26/2023	02/26/2024	$1,000,000	$10,000

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15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

16. Spending Authority. Manager may incur expenses not exceeding $362,000 individually without Owner approval, except in an emergency threatening life or property. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Ashford Data Center, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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21. Management Fee. Manager shall receive a monthly management fee equal to 5.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Schedule of Coverages

Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Great Lakes Mutual	BOP8521483	04/26/2026	04/26/2027	$10,000,000	$50,000
General Liability	Allied Heritage Insurance	GL3762995	06/05/2023	06/04/2024	$5,000,000	$5,000
Umbrella / Excess	Blue Ridge Underwriters	BOP8493655	10/30/2025	10/30/2026	$2,000,000	$50,000
Business Income	Prairie State Indemnity	UMB8721404	08/06/2023	08/05/2024	$5,000,000	$50,000
Flood	Great Lakes Mutual	GL6502848	01/22/2026	01/22/2027	$2,000,000	$50,000
Windstorm / Hail	Allied Heritage Insurance	BOP6583590	04/06/2023	04/05/2024	$1,000,000	$25,000
Terrorism (TRIA)	Blue Ridge Underwriters	UMB2307857	05/23/2024	05/23/2025	$50,000,000	$50,000
Equipment Breakdown	Prairie State Indemnity	CPP1327684	05/23/2026	05/23/2027	$10,000,000	$25,000
Ordinance & Law	Allied Heritage Insurance	GL3236652	12/22/2025	12/22/2026	$1,000,000	$10,000
Workers' Compensation	Prairie State Indemnity	GL1741442	09/18/2023	09/17/2024	$10,000,000	$100,000
Cyber Liability	Keystone Casualty	GL4129275	07/11/2024	07/11/2025	$10,000,000	$100,000
Crime / Fidelity	Allied Heritage Insurance	GL8611231	10/02/2023	10/01/2024	$5,000,000	$10,000
Pollution Legal Liability	Allied Heritage Insurance	BOP8493578	10/15/2025	10/15/2026	$25,000,000	$25,000
Employment Practices	Keystone Casualty	GL7997766	08/08/2023	08/07/2024	$1,000,000	$100,000

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22. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

23. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

24. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Spending Authority. Manager may incur expenses not exceeding $322,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

26. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

27. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

28. Appointment. Owner appoints Manager as the exclusive managing agent of Ashford Data Center, and Manager accepts the appointment under the terms of this Agreement. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

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Coverage	Carrier	Policy No.	Effective	Expiration	Limit	Deductible
Commercial Property	Keystone Casualty	GL8248912	01/19/2026	01/19/2027	$5,000,000	$25,000
General Liability	Keystone Casualty	UMB5017007	09/19/2023	09/18/2024	$1,000,000	$5,000
Umbrella / Excess	Blue Ridge Underwriters	GL9707082	03/11/2026	03/11/2027	$2,000,000	$10,000
Business Income	Allied Heritage Insurance	BOP7395205	06/10/2023	06/09/2024	$10,000,000	$25,000
Flood	Keystone Casualty	UMB5866665	06/21/2023	06/20/2024	$25,000,000	$25,000
Windstorm / Hail	Great Lakes Mutual	GL2384168	07/04/2025	07/04/2026	$5,000,000	$50,000
Terrorism (TRIA)	Prairie State Indemnity	CPP1640058	02/06/2026	02/06/2027	$5,000,000	$10,000
Equipment Breakdown	Blue Ridge Underwriters	BOP6498741	10/16/2025	10/16/2026	$1,000,000	$5,000
Ordinance & Law	Prairie State Indemnity	UMB7259453	05/30/2025	05/30/2026	$1,000,000	$5,000
Workers' Compensation	Allied Heritage Insurance	GL3543725	01/11/2025	01/11/2026	$1,000,000	$10,000
Cyber Liability	Prairie State Indemnity	GL9416804	10/29/2023	10/28/2024	$1,000,000	$5,000
Crime / Fidelity	Allied Heritage Insurance	BOP2574350	04/22/2025	04/22/2026	$1,000,000	$50,000
Pollution Legal Liability	Sentinel Property & Casualty	CPP5569202	09/08/2023	09/07/2024	$50,000,000	$10,000
Employment Practices	Prairie State Indemnity	UMB6462144	05/24/2025	05/24/2026	$10,000,000	$50,000

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29. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

30. Management Fee. Manager shall receive a monthly management fee equal to 4.6% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

31. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

32. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

33. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

34. Spending Authority. Manager may incur expenses not exceeding $27,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI.

35. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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Commercial Property	Keystone Casualty	BOP6538883	03/16/2026	03/16/2027	$10,000,000	$100,000
General Liability	Great Lakes Mutual	CPP4805924	01/24/2026	01/24/2027	$10,000,000	$25,000
Umbrella / Excess	Keystone Casualty	GL4204071	12/18/2025	12/18/2026	$25,000,000	$100,000
Business Income	Blue Ridge Underwriters	UMB2146070	02/17/2023	02/17/2024	$25,000,000	$50,000
Flood	Prairie State Indemnity	BOP2846718	03/29/2026	03/29/2027	$2,000,000	$100,000
Windstorm / Hail	Keystone Casualty	UMB8833751	04/03/2023	04/02/2024	$25,000,000	$100,000
Terrorism (TRIA)	Prairie State Indemnity	CPP5739692	05/10/2024	05/10/2025	$10,000,000	$100,000
Equipment Breakdown	Prairie State Indemnity	CPP9640549	03/04/2023	03/03/2024	$50,000,000	$10,000
Ordinance & Law	Blue Ridge Underwriters	UMB8800513	12/20/2025	12/20/2026	$50,000,000	$5,000
Workers' Compensation	Keystone Casualty	CPP5782146	08/12/2023	08/11/2024	$10,000,000	$50,000
Cyber Liability	Great Lakes Mutual	BOP2027136	06/15/2025	06/15/2026	$2,000,000	$100,000
Crime / Fidelity	Prairie State Indemnity	BOP1594974	11/16/2025	11/16/2026	$2,000,000	$100,000
Pollution Legal Liability	Allied Heritage Insurance	UMB2129538	03/21/2026	03/21/2027	$50,000,000	$5,000
Employment Practices	Allied Heritage Insurance	UMB5322264	01/19/2026	01/19/2027	$5,000,000	$10,000

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Disclaimer and Confidentiality

No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MI. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This document relates solely to Ashford Data Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This document relates solely to Ashford Data Center and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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